

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN
MARINE (SINGAPORE) PTE. LTD., AND YANG MING MARINE TRANSPORT
CORPORATION

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd. (“Evergreen Taiwan”), Evergreen Marine (UK) Limited (“Evergreen UK”), Italia Marittima SpA (“Italia”), Evergreen Marine (Hong Kong) Ltd. (“Evergreen Hong Kong”), and Evergreen Marine (Singapore) Pte. Ltd. (“Evergreen Singapore” and collectively with the Evergreen Line Joint Service Agreement, Evergreen Taiwan, Evergreen UK, Italia, and Evergreen Hong Kong, “Evergreen”),¹ and Yang Ming Marine Transport Corporation (“Yang Ming” and, collectively with Evergreen, the “Respondents”) (NBG, collectively with Respondents, the “Parties”), by their respective undersigned counsel, have met and conferred via videoconference and through email, and

¹ The Evergreen Respondents are each parties to the Evergreen Line Joint Service Agreement, FMC Agreement No. 011982, and collectively do business under the common trading name Evergreen Line.

submit this joint status report regarding the progress of discovery pursuant to the January 27, 2026 Scheduling Order and in advance of any status conference to be scheduled between the Presiding Officer and the Parties:

The Parties have proceeded with the discovery process and served their initial requests for production of documents and interrogatories (the “Discovery Requests”) on February 2, 2026. Following the submission of objections and responses to the Discovery Requests on February 20, 2026, the Parties met and conferred on February 27, 2026 to discuss any unresolved disputes and at this time, no such disputes exist. With the initial Discovery Requests and the corresponding objections and responses exchanged, the Parties executed an ESI Protocol on March 12, 2026, and continue to work together to finalize the Protective Order in this proceeding.

Following the exchange of Discovery Requests, Complainant has worked with its data vendors, AlixPartners and KPMG, to ensure that documents are ready for further collection, review, and production to Respondents. Complainant has met with its vendors on multiple occasions to discuss the ESI Protocol, the collection and ingestion of additional electronic documents and data, searches of relevant data, and review, and has also identified additional custodians and electronic data sources with potentially relevant data.

While still in the process of finalizing data collection, Complainant has begun search and review protocols on the approximately 3.4 million documents collected from selected custodians and electronic files. Complainant is aiming to make its initial production(s) during the week of March 23, 2026 on a rolling basis.

Respondents have commenced collection, search and review, in accord with agreed ESI protocols, of the now estimated over 1 million documents held by the subject Respondents. Respondents are planning to begin production on a rolling basis in the week of March 23, 2026, given the overseas location of much of the information and associated issues with same.

As set forth in the January 27, 2026 Scheduling Order, the current schedule going forward is as follows:

EVENT	CURRENT DEADLINE
Substantial completion of production of documents and ESI pursuant to initial requests	April 1, 2026
Complete depositions of fact witnesses	May 18, 2026
Disclosure of initial expert reports, if any	May 29, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	June 1, 2026
Disclosure of rebuttal expert reports, if any	June 19, 2026
Complete expert depositions	July 1, 2026
Close of discovery	July 1, 2026
Complainant's brief, proposed findings of fact, appendix due	July 29, 2026
Respondents' opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due	August 26, 2026
Complainant's reply brief, response to Respondents' proposed findings of fact due	September 9, 2026

In light of the above, the Parties will continue to work diligently with the goal of completing discovery in a timely and efficient manner, but believe that good cause has been demonstrated to modify the 150-day deadline provided for under 46 C.F.R. § 502.141(g) and propose the following deadlines for discovery:

EVENT	PROPOSED DEADLINE
Substantial completion of production of documents and ESI pursuant to initial requests	May 1, 2026
Complete depositions of fact witnesses	June 18, 2026
Disclosure of initial expert reports, if any	June 29, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	July 1, 2026
Disclosure of rebuttal expert reports, if any	July 20, 2026
Complete expert depositions	August 3, 2026
Close of discovery	August 3, 2026
Complainant's brief, proposed findings of fact, appendix due	August 31, 2026

Respondents' opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due	September 28, 2026
Complainant's reply brief, response to Respondents' proposed findings of fact due	October 9, 2026

Dated: March 18, 2026

Respectfully submitted,

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